

		Los Angeles market rates,” was upheld based on its finding that, “[t]he quality of lawyering was high; far beyond what the court would expect of an average lawyer—even with the years of experience the lawyers here exhibited.” (<i>Id.</i> at 547.) Here, the Court finds Plaintiff’s counsel exercised skill and diligence in prosecuting this case through trial. Defendants did not appear or oppose the present motion. Counsel is highly experienced in employment law, worked on this case efficiently, and reasonably delegated many tasks to her paralegal. Therefore, the Court will accept counsel’s hourly rate of \$950 and paralegal rate of \$150. Counsel has submitted detailed billing records demonstrating she spent 27.75 hours and her paralegal spent 10.5 hours litigating this matter to trial, plus an additional 6.5 and 3 hours respectively on the present motion, for total incurred fees of \$34,562.00. Counsel also seeks a 1.5x multiplier based on the contingent risk and public interest in this case. Based on the factors set out in <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1132, including the contingent risk and public policy served by bringing this lawsuit to enforce unpaid wages, the Court finds a 1.25x multiplier is reasonable. Therefore, the motion is granted in the total amount of \$43,847.36. (\$34,562 x 1.25 multiplier = \$43,202.50, plus costs of \$644.86.)
12.	CAO VS. GENERAL MOTORS, LLC 2024-01409133	MOTION FOR SUMMARY JUDGMENT Defendant General Motors LLC moves for summary judgment as to plaintiff Derick Cao’s Complaint is DENIED. “[S]ummary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Civil Proc. Code, § 437c, subd. (c).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . .” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850 (<i>Aguilar</i>).) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Civil Proc. Code § 437c, subd. (p)(2); <i>Aguilar, supra</i>, 25 Cal.4th at pp. 850-51.) However, “[t]he defendant must indeed present evidence.” (<i>Aguilar, supra</i>, 25 Cal.4th at p. 855, italics in original.) If the moving party meets its burden, the burden then shifts to the party opposing

summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855.)

Defendant moves for summary judgment as to Plaintiff's first cause of action for Violation of Civil Code §1793.2, subdivision (d), second cause of action for Violation of Civil Code §1793.2, subdivision (b), third cause of action for Violation of Civil Code §1793.2(a)(3), and fourth cause of action for Breach of Express Written Warranty on the grounds the subject vehicle was not a new motor vehicle when purchased by Plaintiff, and no new warranty was issued with that sale.

Defendant has submitted evidence to show the subject vehicle, a model year 2021 Cadillac Escalade, was leased on December 6, 2021, by Plaintiff from Dublin Chevrolet Cadillac ("Dublin"). (Defendant's Undisputed Material Fact ("UMF") 1-2.) Defendant contends after the original lease of the subject vehicle had ended, Plaintiff purchased the vehicle from Dublin. (UMF 4.) However, Defendant has failed to submit competent evidence to substantiate Plaintiff purchased the subject vehicle. Although Defendant cites to the Declaration of Gregory Gruszecki which it contends attaches the Retail Installment Sales Contract ("RISC") as Exhibit B, Gruszecki's declaration neither references nor attaches the RISC. (ROA 140.) Therefore, Defendant's moving papers fail to show Plaintiff exercised his option to purchase the subject vehicle and that the subject vehicle was not a new motor vehicle.

In support of its Reply, Defendant has submitted a Supplemental Declaration of Gruszecki which attaches the RISC. (Supp. Gruszecki Decl., ¶ 6, Ex. B.) Gruszecki is Defendant's attorney and has failed to authenticate the RISC. Specifically, Defendant has failed to show he has any personal knowledge of the RISC. Even if the RISC was properly authenticated, section 437c, subdivision (b)(4) provides the "reply shall not include any new evidentiary matter." (Code Civ. Proc., § 437c, subd. (b)(4).) Therefore, the Court cannot consider the RISC. As such, Defendant has failed to meet its initial burden on the Motion.

Since Defendant moves for summary judgment only and the court finds Defendant is not entitled to judgment on the first, second, third and fourth causes of action, the court does not address the fifth cause of action.

Potential AI Hallucinations in Motion:

"Simply stated, no brief, pleading, motion, or any other paper filed in any court should contain *any* citations—whether provided by generative AI or any other source—that the attorney responsible for submitting the pleading has not personally read and verified." (*Noland v. Land of the Free, L.P.* (2025) 114 Cal.App.5th 426, 431 (*Noland*).) "[A]ttorneys must check every citation to make sure the case exists and the citations are correct. [Citation.] Attorneys should

		not cite cases for legal propositions different from those contained in the cases cited. [Citation.] And attorneys cannot delegate this responsibility to any form of technology; this is the responsibility of a competent attorney. [Citation.] ‘ “Honesty in dealing with the courts is of paramount importance, and misleading a judge is, regardless of motives, a serious offense.” ’ [Citation.]” (<i>People v. Alvarez</i> (2025) 114 Cal.App.5th 1115, 1119.) [R]elying on fabricated legal authority is sanctionable.” (<i>Noland, supra</i>, 114 Cal.App.5th at p. 445.) Here, it appears Defendant may have used AI for some portions of the Motion and did not check the work. Although most of the cases to which the quotes are attributed exist, the quotes do not. Further, some of the cases Defendant cites do not support the propositions for which they are cited, and one of the cited cases does not exist at all. For example, Defendant cites to <i>Dagher v. Ford Motor Co.</i> (2015) 238 Cal.App.4th 905, 917 (<i>Dagher</i>) stating that “the Court confirmed the Act’s refund/replacement remedies for breach of express warranty ‘extend only to new motor vehicles.’” (Motion, 8:8-11.) Although the case exists, the language quoted by Defendant is not contained in the <i>Dagher</i> opinion. Similarly, Defendant cites to <i>Nunez v. FCA US LLC</i> (2021) 61 Cal.App.5th 385 (<i>Nunez</i>) stating “the Court noted that Song-Beverly ‘maintains a distinction between sales of new and used goods.’” (Motion, 8:10-13.) Again, although the case exists, the language quoted by Defendant is also not contained in the <i>Nunez</i> opinion. Defendant also cites to <i>Kiluk v. Mercedes-Benz USA, LLC</i> (2019) 43 Cal.App.5th 334, 337 (<i>Kiluk</i>) stating that “the Court held that a manufacturer’s duty to repurchase or replace a vehicle ‘does not extend to used vehicles that are purchased after a prior lease.’” (Motion, 8:6-9.) The Court’s opinion in <i>Kiluk</i> does not contain the quoted language and the opinion in fact has nothing to do with leased vehicles as the vehicle in that case was not a lease buyout but a certified preowned vehicle. Lastly, Defendant in the moving papers cites <i>O’Neil v. FCA US LLC</i> (2021) 61 Cal.App.5th 421, 431 which Defendant admits in its Reply does not exist and withdraws the citation. (Reply, 4:24-26.) Plaintiffs’ counsel is ordered to appear and discuss the inaccuracies and discrepancies with the court at the hearing. If the court decides to issue an order to show cause, a separate hearing will be set. Moving Defendant to give notice.
13.	YOUNG VS. ADAMS 2022-01281968	MOTION FOR AN ORDER REQUIRING SECURITY Specially Appearing Defendants Collect Co, Ali Ammar aka John Adams, and Daniel Wall’s (erroneously sued as David Wall) Motion for an Order Requiring Security in the amount of \$150,000.00